

1 _____ JOINT RESOLUTION NO. _____
2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A JOINT RESOLUTION OF THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE STATE OF
5 MONTANA PROCLAIMING THAT THE STATE OF MONTANA SUPPORTS ADMITTING WASHINGTON,
6 D.C., INTO THE UNION AS A STATE OF THE UNITED STATES OF AMERICA.

8 WHEREAS, since the ratification of the United States Constitution on June 21, 1788, the Congress of
9 the United States has had the power "to exercise exclusive Legislation in all Cases whatsoever, over such
10 District (not exceeding ten Miles square) as may, by Cession of particular States, and the Acceptance of
11 Congress, become the Seat of the Government of the United States"; and

12 WHEREAS, the seat of government of the United States was accepted by Congress on July 16, 1790,
13 transferred from the Commonwealth of Pennsylvania to the District on December 1, 1800, in accordance with
14 the Residence Act of 1790, and organized into the District of Columbia under the entire control of Congress for
15 every purpose of government on February 27, 1801, in accordance with the District of Columbia Organic Act of
16 1801, through which the residents ceased to be considered citizens of a state and were no longer entitled to all
17 the rights, guaranties, and immunities of the Constitution, including but not limited to the right to appoint at least
18 three electors in the Electoral College for President and Vice President of the United States, the right to elect
19 two Senators and at least one Representative in the Congress, and the right to self-govern and ratify proposed
20 amendments to the Constitution, despite continuing to pay federal taxes, serve in the military, and share all
21 other responsibilities of citizenship of the United States; and

22 WHEREAS, the 23rd Amendment to the Constitution was proposed by Congress on June 16, 1960,
23 and ratified by a sufficient number of states on March 29, 1961, granting "the District constituting the seat of
24 Government of the United States" the right to appoint "a number of electors of President and Vice President
25 equal to the whole number of Senators and Representatives in Congress to which the District would be entitled
26 if it were a State, but in no event more than the least populous State"; and

27 WHEREAS, Congress granted a delegate to the House of Representatives from the District of
28 Columbia, who "shall have a seat in the House of Representatives, with the right of debate, but not of voting",

1 on September 22, 1970, in accordance with the District of Columbia Delegate Act, after previously establishing
2 the position on February 21, 1871, and repealing the position on June 20, 1874; and

3 WHEREAS, enactment of the District of Columbia Home Rule Act by Congress on December 24, 1973,
4 and ratification of the Charter Referendum by a majority of the voters of the District of Columbia on May 7,
5 1974, reorganized the District of Columbia by granting limited powers of local self-government to an elected 13-
6 member Council of the District of Columbia and an elected Mayor of the District of Columbia to "relieve
7 Congress of the burden of legislating upon essentially local District matters". However, Congress granted no
8 local control over the judiciary and reserved "the right, at any time, to exercise its constitutional authority as
9 legislature for the District, by enacting legislation for the District on any subject, whether within or without the
10 scope of legislative power granted to the Council ... including legislation to amend or repeal any law in force in
11 the District"; and

12 WHEREAS, historically, Congress and the President of the United States have interfered with the
13 District of Columbia's local self-government and Home Rule by enacting resolutions disapproving, amending,
14 and repealing actions of the Council of the District of Columbia and the Mayor of the District of Columbia --
15 including cases concerning the location of chanceries on December 20, 1979, sexual assault reform on October
16 1, 1981, schedule of heights on March 12, 1991, and a revised criminal code on March 20, 2023 -- and by
17 imposing budget riders that control and limit the use of locally raised tax revenue, including cases concerning
18 reproductive health services, cannabis use, and statehood advocacy; and

19 WHEREAS, on multiple occasions, a majority of the voters of the District of Columbia have approved
20 initiatives and referendums expressing a desire for statehood, most recently on November 8, 2016, through
21 which 85.69% of voters:

- 22 (1) agreed that the District should be admitted to the Union as the State of New Columbia;
23 (2) approved the Constitution of the State of New Columbia;
24 (3) approved the proposed boundaries between the State of New Columbia and the federal
25 enclave; and
26 (4) agreed that the State of New Columbia shall guarantee an elected representative form of
27 government; and

28 WHEREAS, other state and territorial legislatures in the United States have introduced, debated, and

1 passed resolutions that support admitting the District of Columbia into the Union as a state of the United States
2 of America; and

3 WHEREAS, despite the Constitution establishing that "New States may be admitted by the Congress
4 into this Union", and despite the United States House of Representatives passing the Washington, D.C.
5 Admission Act on June 26, 2020, and again on April 22, 2021, which would declare the state of Washington,
6 Douglass Commonwealth, to be "a State of the United States of America, and declared admitted into the Union
7 on an equal footing with the other States in all respects whatever", Congress has yet to grant full statehood to
8 the approximately 700,000 people of Washington, D.C.

9
10 NOW, THEREFORE, BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF
11 THE STATE OF MONTANA:

12 (1) That the State of Montana supports admitting Washington, D.C., into the Union as a state of
13 the United States of America.

14 (2) That the State of Montana opposes efforts by Congress and the President of the United States
15 that interfere with local self-government and Home Rule, including federal laws disapproving, amending, and
16 repealing actions of the Council of the District of Columbia and the Mayor of the District of Columbia as well as
17 federal budget riders that control and limit the use of locally raised tax revenue.

18 (3) That the State of Montana calls on Congress and the President of the United States to enact
19 federal legislation granting statehood to the people of Washington, D.C.

20 BE IT FURTHER RESOLVED, that the Secretary of State send a copy of this resolution to the
21 President of the United States, the President of the United States Senate, the Speaker of the United States
22 House of Representatives, and each member of the Montana Congressional Delegation.

23 - END -